



File No.: EXP202302391

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On February 11, 2023, a complaint was filed with registration number REGAGE23e00008762914 before the Spanish Agency for Data Protection against BAR EL RINCONCITO and A.A.A. with ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that the complained party is responsible for a premises adjacent to the complainant's premises, which has a semi-hidden surveillance camera on its facade that is oriented towards the entrance of the complainant's premises, without having authorized such action. Images of the location of the camera and the area affected by its orientation are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified postal mail, was returned marked "absent in delivery" on 02/23/2023; the forwarding to the address of BAR EL RINCONCITO was reiterated and was returned again marked "absent in delivery" on 03/21/2023. Notification of the forwarding to the address of A.A.A. was carried out, but it was returned by the postal service marked "incorrect address"; the forwarding was reiterated by the same means, and notification was made on 04/28/2023, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On May 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

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LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Processing for Surveillance Purposes

Article 22.1 of the LOPDGDD states the following:

"1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as

their facilities.”

Article 5 of the GDPR, “Principles relating to processing,” provides in paragraph 1: “Personal data shall be: processed lawfully, fairly, and in a transparent manner in relation to the data subject (‘lawfulness, fairness, and transparency’)”

The GDPR regulates the lawfulness of processing in its Article 6, which determines in paragraph 1 the circumstances under which the processing of third-party data is lawful: “1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

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f) the processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not prevail over the interests or the fundamental rights and freedoms of the data subject requiring the protection of personal data, particularly when the data subject is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

III

Claimed Facts

The complaint concerns the installation of a video surveillance system in a hospitality establishment located opposite the claimant's premises. The establishment of the respondent has a semi-hidden surveillance camera on its facade, which is directed at the entrance of the claimant's premises, without having obtained authorization for this.

An analysis of the documents that make up the administrative file reveals the following points relevant to the matters at hand:

The images submitted by the claimant demonstrate that there is a tubular piece that at its end has what appears to be a camera lens, located next to an air conditioning unit, but it cannot be verified whether it is carrying out video surveillance, whether the camera is authentic, or whether it records images; nor can its possible field of vision be presumed.

The respondent would not need to obtain the consent of the claimant to install a video surveillance system on its property, as the legal basis for the data processing carried out through video surveillance does not rely on the consent of the affected parties.

IV

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

In accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to BAR EL RINCONCITO and A.A.A. and to the claimant.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of the LPACAP, and in accordance with the provisions of Articles 112 and 123 of the aforementioned LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es